

underlying the judgment such that Plaintiff concedes it is void or voidable and should not be maintained or enforced or that there exist other extrinsic factors justifying the setting aside of the subject Default Judgment in the interests of justice.

Disposition

The Court finds and orders as follows:

1. The Motion to Vacate Judgment is GRANTED.
2. The Default Judgment is hereby VACATED and SET ASIDE.
3. The case is hereby DISMISSED, WITHOUT PREJUDICE.
4. A proposed form of order was lodged with the Court which the Court shall execute and enter.

2. 9:00 AM CASE NUMBER: L23-00459
CASE NAME: ONEMAIN FINANCIAL GROUP, LLC VS. BRANDY JACKSON
*HEARING ON MOTION IN RE: CONTINUED FROM 11/18/25
FILED BY:
TENTATIVE RULING:

Plaintiff OneMain Financial Group, LLC ("Plaintiff") filed a Motion for Judgment on the Pleadings on July 29, 2025 (the "Motion for Judgment on the Pleadings"). The Motion for Judgment on the Pleadings was set for hearing on October 28, 2025.

It appears that the Clerk of the Court erroneously interlineated the hearing date on the caption of the moving papers as having been set for "10/29/2025." The motion is not set for October 29, 2025.

The motion was unopposed, and the Court issued a tentative ruling in connection with the previous October 28th hearing date. However, out of an abundance of caution, given the erroneous date referenced on the motion caption and subsequent papers, the Court continued this matter to a subsequent hearing date, November 18, 2025. Plaintiff was ordered to give notice of the new hearing date.

Both sides appeared for the hearing on November 18, 2025. Defendant Brandy Jackson ("Defendant") confirmed receipt of notice of the motion. She also advised the Court of payments made on the subject debt not accounted for in the amount stated in the RFAs underlying the pending motion and relief requested, which Plaintiff acknowledged. See Order issued November 18, 2025. **The Court continued the motion to allow the parties an opportunity to confer on resolution or for the parties to otherwise submit any further papers addressing the issue regarding the effect of the payments made and received on the relief requested by the pending motion. *Id.* The Court ordered that either party may submit any updated papers for the Court's consideration, which shall be filed and served no later than December 12, 2025. *Id.*** The hearing was continued to

December 23, 2025. *Id.*

No further filings by either party appear of record.

Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that defendant Brandy N Jackson (the “Defendant”) admits all statements in the complaint are true and that Defendant owes the alleged debt.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges causes of action for Breach of Contract and Common Counts (Open Book Account, Account Stated, Money Had and Received, Goods Sold and Delivered, Money Lent and Money Paid at Defendant’s Special Instance and Request) based on the allegation that Defendant became indebted in the amount of \$7,530.54 on a personal loan account. See Complaint filed January 26, 2023, p. 2, ¶¶8 and 10 and Attachments (1st and 2nd Causes of Action).

Defendant’s Answer was filed April 21, 2023. The Answer denies the allegations of the Complaint and states various affirmative defenses. See Answer filed April 21, 2023.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court. See Order entered June 4, 2025 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$7,530.54. See Deemed Admitted Order; see also Request for Judicial Notice filed July 29, 2024 (“RJN”), **Exhibit B**, RFAs attached to Declaration of Douglas Agne, Esq. filed December 12, 2024.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Plaintiff has not submitted any further briefing, notwithstanding the Court's invitation during the last hearing, on the issue of the propriety of entering a judgment on the pleadings where the Court has actual, uncontested information before it that the principal amount due and owing is at variance with the amount set out in the pleadings before the Court.

The Court concludes that it would be a miscarriage of justice to enter a money judgment against Defendant—in the context of a motion for judgment on the pleadings—for an amount that the Court and the parties are aware exceeds Defendant's liability on the obligation sued upon, as admitted in open court, especially where the creditor has had an opportunity to address the issue by further filing(s) but has not done so. Nor has Plaintiff presented any authorities suggesting that the Court could enter a judgment in a lesser sum in these circumstances. The Plaintiff may have other recourse, but the Court does not conclude that judgment on the pleadings is appropriate at this stage.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is DENIED.

3. 9:00 AM CASE NUMBER: L24-01684

CASE NAME: VELOCITY INVESTMENTS, LLC VS. IILENA HANDY

***HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL AND RESTORE CASE TO PREVIOUS STATUS FILED BY PLN ON 10/6/25**

FILED BY: VELOCITY INVESTMENTS, LLC

TENTATIVE RULING:

Plaintiff and judgment creditor Midland Credit Management, Inc. ("Plaintiff") filed a Motion to Vacate Dismissal and Restore Case to Previous Status on October 6, 2025 (the "Motion to Vacate Dismissal"). The Motion to Vacate Dismissal was set for hearing on December 23, 2025. No opposition has been filed.

Background

On August 6, 2025, the Court issued its Order Dismissing Complaint after OSC (the "August 6, 2025 Dismissal"). The Court dismissed Plaintiff's case with prejudice for failure to appear at a June 4, 2025 Case Management Conference (CMC). The Court's dismissal was with prejudice due to the aggravating circumstances addressed at length in the August 6, 2025 Dismissal.

Analysis

Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party "from a judgment, dismissal, order, or other proceeding taken against him or her" from a default judgment resulting from "his or her mistake, inadvertence, surprise, or excusable neglect." Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41